

22PSCV01127 22PSCV01127

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C08%2F18%2F2026

Source SHA-256: 2169a69a38bbf6663615b9aeff6858b5f3af4ec30e3cab77a33b085d15cb89d6

Case Number: 22PSCV01127 Hearing Date: August 18, 2026 Dept: H

General Coatings

Corp. v. Martinez, et al., Case No. 22PSCV01127

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

The hearing on Counsel for Defendant

Li Zhou's & Hongguang Tu's (i.e., Jessica L. Moran) Motion to be Relieved
as Counsel is GRANTED.

Background

Plaintiff General Coatings Corporation ("Plaintiff")

alleges as follows:

Plaintiff

is a waterproofing contractor. Defendant Jonathan Martinez doing business as JNR2 Construction ("JNR2") is a general building contractor. On March 9, 2022, Plaintiff and JNR2 entered into a written agreement (the "Agreement"), wherein Plaintiff agreed to provide labor, materials, and services for construction and installation of waterproofing at 23509 Ridge Line Rd., Diamond Bar, CA 91765 (the "subject property") in exchange for payment. The subject property is owned by Defendants Hongguang Tu ("Tu") and Li Zhou ("Zhou"). JNR2 has failed to pay Plaintiff per the Agreement.

On

September 29, 2022, Plaintiff filed a complaint, asserting causes of action
against JNR2, Tu, Zhou, Old Republic Surety Company ("Old Republic™"), and Does

1-100 for: (1) Breach of Contract, (2) Foreclosure of Mechanic's Lien, (3) Enforcement of Mechanic's Lien Release Bond, (4) Enforcement of Contractors License Bond, and (5) Quantum Meruit.

On
October 12, 2022, Old Republic was dismissed.

On
June 15, 2023, Default Judgment was entered against JNR2.

A Post-Mediation Status
Conference is set for August 18, 2026.

Notice

At the
outset, the Court observes that the July 21, 2026 proof of service accompanying the motion reflects electronic service on Plaintiff only. Although moving counsel represented in her declarations accompanying the motion that Clients were mail-served with the motion, she has not filed a proof of service (i.e., as of August 12, 2026, 4:58 p.m.) reflecting that Clients were served with the motion.

The
following analysis, then, is contingent upon moving counsel
filing a proof of service reflecting that Clients were served with the motion
in compliance with Code of Civil Procedure section 1005, subdivision (b) at or
before the time of the hearing.

Discussion

Jessica L. Moran ("Moran") of Plante Huguenin Launi
Kahn, LLP seeks to
be relieved as counsel of record for Tu & Zhou ("Clients").

The court has discretion to allow an attorney to
withdraw, and such a motion should be granted provided that there is
no prejudice to the client and it does not disrupt the orderly process
of justice. (See Ramirez v. Sturdevant (1994) 21
Cal.App.4th 904, 915; People v. Prince (1968) 268 Cal.App.2d

398.)

California Rule of Court ("CRC") Rule 3.1362

requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

Attorney Moran represents that Ira D. Lebovic, the case's handling partner, abruptly retired from the firm. The firm sent correspondences to the clients on 5/22/26, 6/23/26, 6/30/26, and 7/1/26 via U.S. Mail to the clients' last known addresses and to the last known email addresses, informing them that Mr. Lebovic was no longer at the firm and that the firm lacked an available attorney to continue representing the clients. Thus, the firm would be moving to withdraw as counsel pursuant to California Rule of Court 3.1362 and Rule of Professional Conduct 1.16(b)(10) if the clients did not retain new counsel to substitute into the case.

Moran states that she has served the Clients by mail at their last known addresses confirmed, within the past 30 days, that the address is current via the Secretary of State website.

The court determines that the requirements of Rules of Court rule 3.1362 enumerated above have been sufficiently met.

Accordingly, the motion is granted, effective upon the filing of the proof of service reflecting service of the signed order upon the Clients at the Clients' last known address(es).